

U.S. Constitutions and Founding Documents (constrefs.dtx)

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These references cover the U.S. Constitution, state constitutions, and other founding documents such as the *Federalist* papers and the Declaration of Independence.

const: Citation to a constitution

Because of the intensive way in which parts of constitutions are analyzed, this package provides that each *part* of a constitution to be cited should be defined as a separate reference.

Key Parameters:

name: The textual name of the constitution part being cited. This can be a textual representation of the pin cite (e.g., “Article II”) or a common name (e.g., “the Equal Protection Clause”).

page: The pin cite specification for the constitution part for this reference. Typically this will be a listing of named divisions: `article 1`, `S 8`, `clause 8`, for example.

Optional Parameters:

place, state: The state from which this constitution originates, if not “U.S.” The place will be abbreviated using the **name** scheme.

year: The year of adoption, for superseded constitutions. To enter years for adoption of specific amendments or provisions, use **paren**.

Pin cites given in citation items will use the pin cite joining algorithm given in `pages.dtx`.

Example:

```
\defconst{a2s3}{  
  name=the Take Care Clause,  
  page={Article II, S 3}  
}
```

constamend: A Constitutional amendment

This is just a shortcut for `const` when defining whole amendments. The parameters and usage are identical to `const` except the `name` and `page` parameters are automatically set to “the *<ordinal-number>* Amendment” and “amendment *<number>*” respectively.

Key Parameters:

number: The number of the amendment. This should be a regular Arabic number; it will be converted to Roman numerals for the citation form and ordinal number text for the inline form.

Example:

```
\defconstamend{1a}{
  number=1,
}
```

Generic macro for setting up constitution part citations. #1 is the name, #2 the inline text. `\hi@kv@page` must be set as well.

```
\def\hi@const@part#1#2{%
  \hi@ifset\hi@kv@place{%
    \@expandarg\hi@abbrev@name{\def\hi@kv@place}%
  }\def\hi@kv@place{U.S.}%
  \hi@statcode@setup@idpc{#1}% Set up id. and page numbering
  \hi@newcite@form{fc}{#1}{%
    \hi@citeguts{%
      \hi@inline@never{%
        \noexpand\hi@fn@const{%
          \hi@kv@place\space % State, and space
          Const.%
        }%
        \noexpand\hi@dottrue
        \hi@ifset\hi@kv@year{%
          \noexpand\hi@dotfalse\space
          of \hi@kv@year
        }%
        \hi@pageordefault{%
          \noexpand\hi@dotfalse
          \hi@ifset\hi@kv@year{,}{ }\space
        }%
        \hi@ifset\hi@kv@page{%
          \hi@ifset\hi@kv@year{,}{ }\space
          \noexpand\hi@dotfalse
          \@format@page@macro\hi@kv@page
        }%
      }%
    }%
  }%
  \hi@inline@only{#2}%
}%
\hi@invis@inline
\the\hi@param@parens
}%
\hi@newcite@form{lc}{#1}{%
  \noexpand\hi@toaduptitle{}%
  \hi@fn@const{\hi@kv@place\space Const.}%
  \hi@ifset\hi@kv@year{\space of \hi@kv@year}{}%
}%
\hi@pageordefault{%
  \hi@ifset\hi@kv@year{,}{ }%
}%
\hi@ifset\hi@kv@page{%
  \hi@ifset\hi@kv@year{,}{ }%
  \@format@page@macro\hi@kv@page
}%
}%
\hi@pageordefault{%
  \hi@ifset\hi@kv@year{,}{ }%
}%
\hi@ifset\hi@kv@page{%
  \hi@ifset\hi@kv@year{,}{ }%
}
```

```

\@format@page@macro\hi@kv@page
}{}%
}%
\the\hi@param@parens
}%
}

```

founding: A national founding document

This generalizes the form for citing the Declaration of Independence, for which the reference type is otherwise unclear.¹ Mainly, this form provides a flexible citation container that sets the given title in the same font as that for constitutions.

Key Parameters:

name: The name of the document.

Optional Parameters:

year: The relevant year of the document.

Pin cites given in citation items will use the pin cite joining algorithm given in `pages.dtx`.

federalist: A Federalist paper

Key Parameters:

number: The number of the paper.

Optional Parameters:

author: The author of the paper.

¹The *Bluebook* does not define a type for the Declaration of Independence but gives it as an example of how to cite subdivisions. Nevertheless, the chosen format is puzzling. It puts “The” in front of the name, even though “The” is typically omitted from titles of statutes. (“The” is not omitted from book titles that actually start with “The,” but the Declaration does not have an official title on its face.)

It then puts “U.S.” in the date parenthetical. Putting aside the question of whether the United States existed at the time the Declaration was signed, it is unclear why the country is included in the parenthetical rather than as part of the title. Typically, that placement of a jurisdiction would identify a court or similar tribunal issuing a decision, but it is a stretch to say that the Declaration is an adjudicated result. If it is to identify the country issuing the Declaration to distinguish from other nations’ declarations of independence, then “U.S.” ought to be added in a separate parenthetical based on the usual rule for foreign materials. The best interpretation perhaps is that the Declaration is being cited as a book, explaining the superfluous “The,” and that the United States is being identified as the publisher of a pre-1900 work—a strange approach for many reasons.